

Rakesh Dhar Bind v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 May 2023 · WRIT-C No. 14687 of 2023 · **Demand notice quashed; hearing then final assessment under Supply Code**

HEADNOTE

A notice that grants thirty days to object to a proposed assessment is not a final assessment. The demand issued without deciding the objection already filed is quashed, and the licensee must hear the consumer and then pass a final assessment under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rakesh Dhar Bind challenged demand notices of 18 January 2023 and 14 March 2023 seeking Rs.18,170 for an electricity connection taken by his late father. The January notice gave thirty days, as a last opportunity, to object to a proposed assessment of Rs.20,170 and a compounding fee of Rs.18,170, failing which a final assessment would be made. He filed an objection by registered post on 27 February 2023. Without deciding it, the department issued the March demand.

REUSABLE CONSTRUCTIONS

1. A notice that itself grants time to object to a proposed assessment is only a provisional assessment and cannot be treated as an order of final assessment. ¶ 1
2. A demand raised without deciding an objection already filed to the provisional assessment is liable to be quashed, with a direction to hear the consumer and then pass final assessment under the Electricity Supply Code, 2005. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::final-assessment

provisional notice inviting objection is not a final assessment

HOLDING

The notice dated 18.01.2023 is not an order of final assessment, because it grants thirty days as a last opportunity to file an objection against the provisional assessment. The demand notice dated 14.03.2023, issued without deciding the objection filed on 27.02.2023, is quashed. The department must hear the petitioner and thereafter pass a final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

FLAG Order cites the Electricity Supply Code, 2005 for the final-assessment procedure but states no clause number.

PRINCIPLE TAGS

provisional-assessment-notice-is-not-final-assessment

The 18 January 2023 notice, which gave thirty days to object to the proposed assessment and compounding fee, was held not to be a final assessment. The 14 March 2023 demand, issued without deciding the objection, was quashed and the matter sent back for a hearing and a final assessment under the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF THE PROPOSED ASSESSMENT AND COMPOUNDING FEE, AND THE PETITIONER'S LIABILITY FOR HIS LATE FATHER'S CONNECTION

Left to a hearing and a final assessment under the Electricity Supply Code, 2005. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.